COMBINED SYNOPSIS/SOLICITATION

Snow Removal Milwaukee, WI

Previous Blanket Purchase Agreement 1305M322ANWWR0001, incumbent Ground Affects Landscaping for a Five-Year total of $250,000.

(i) This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with part 12. This announcement constitutes the only solicitation. Quotes are being requested and a separate written solicitation will not be issued.

Solicitation number 1305M327Q0035 is issued as a request for quotation (RFQ), for snow removal services in Milwaukee, WI.

This acquisition is set-aside for small business concerns. The associated NAICS code is 561790. The small business size standard is $9.0M.

The Government intends to award a low priced, technically acceptable, single award firm fixed-price purchase order on an all or none basis with payment terms of Net 30.

This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

(ii) A list of line-item number(s) and items, quantities, and units of measure (including option(s), if applicable).

CLIN 0001 – Base Year
Services, non-personal, to provide all labor, equipment and materials (unless otherwise provided herein) necessary for snow removal services at the WFO in Milwaukee, WI, in accordance with the Statement of Work.

CLIN 1001 – Option Year 1
Services, non-personal, to provide all labor, equipment and materials (unless otherwise provided herein) necessary for snow removal services at the WFO in Milwaukee, WI in accordance with the Statement of Work.

CLIN 2001 – Option Year 2
Services, non-personal, to provide all labor, equipment and materials (unless otherwise provided herein) necessary for snow removal services at the WFO in Milwaukee, WI in accordance with the Statement of Work.

CLIN 3001 – Option Year 3
Services, non-personal, to provide all labor, equipment and materials (unless otherwise provided herein) necessary for snow removal services at the WFO in Milwaukee, WI in accordance with the Statement of Work.

CLIN 4001 – Option Year 4
Services, non-personal, to provide all labor, equipment and materials (unless otherwise provided herein) necessary for snow removal services at the WFO in Milwaukee, WI in accordance with the Statement of Work.

(iii) Description of requirements for the items to be acquired, including documentation supporting any brand name descriptions (see 12.102).

See attached Statement of Work which applies to Base Year and all Option Years 1 – 4, and Department of Labor Wage Rates: WD 2015-4899 Rev 32, dated 08/22/2026, which can be found on: https://sam.gov/content/wage-determinations

INVOICES TO BE BILLED MONTHLY IN ARREARS VIA IPP. PROVIDE MONTHLY AND ANNUAL PRICING FOR EACH BASE AND OPTION YEAR. QUOTE PRICING MAY BE PROVIDED ON ATTACHED SF18 FORM OR ON COMPANY LETTERHEAD.

(iv) Date(s) and place(s) of delivery and acceptance and f.o.b. point (see part 47).

Period of performance shall be:
Base Year 12/01/2026 through 11/30/2027
Option Period 1 for a twelve month period 12/01/2027 through 11/30/2028
Option Period 2 for a twelve month period 12/01/2028 through 11/30/2029
Option Period 3 for a twelve month period 12/01/2029 through 11/30/2030
Option Period 4 for a twelve month period 12/01/2030 through 11/30/2031

Place of Performance:
National Weather Service N3533 Hardscrabble Road
Dousman, WI 53118-9409
Waukesha County, WI

(v) A list of solicitation provisions that apply to the acquisition (see 12.205(a)) can be found on the Request for Quote Form SF18 attachment in Section 5 Other Contract Terms and Conditions.

RFO 52.237-1 Site Visit (Apr 1984) (Deviation Jan 2026)
Offerors or quoters are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award.

(End of provision)

A site visit is highly recommended but not required. Vendors are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award. Please contact Tami Fettig (262) 431-5026, tami.fettig@noaa.gov to set up a time to visit the site. All questions during the site visit should be submitted electronically to Casey.Keating@noaa.gov.

(vi) A list of contract clauses that apply to the acquisition (see 12.205(b)) can be found on the Request for Quote Form SF18 attachment in Section 4 Contract Terms and Conditions.

(vii) Quotes are required to be received in the contracting office no later than 2:30 MST/MDT on 11/20/2026. All quotes must be submitted electronically via email to casey.keating@noaa.gov.

THE GOVERNMENT DOES NOT ACCEPT RESPONSIBILITY FOR NON-RECEIPT OF QUOTES. IT IS THE CONTRACTOR'S RESPONSIBILITY TO REQUEST AND RECEIVE A CONFIRMATION OF THE QUOTE RECEIPT.

(viii) Any other additional information required by 5.101(c).

Per NOAA Deviation 2025-02/03: System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Contracting officers will not consider those representations when

making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

REQUEST FOR QUOTATION
(THIS IS NOT AN ORDER)

THIS RFQ ☒ IS ☐ IS NOT A SMALL BUSINESS SET-ASIDE

PAGE 1 OF PAGES 29

1. REQUEST NUMBER	2. DATE ISSUED	3. REQUISITION/PURCHASE REQUEST NUMBER	4. CERT. FOR NAT. DEF. UNDER BDSA REG. 2 AND/OR DMS REG. 1	RATING
1305M327Q0035				

5a. ISSUED BY
WAD-SAP
325 BROADWAY, SOU6
BOULDER CO 80305

6. DELIVER BY *(Date)*

7. DELIVERY
☒ FOB DESTINATION ☐ OTHER *(See Schedule)*

5b. FOR INFORMATION CALL *(NO COLLECT CALLS)*

NAME	TELEPHONE NUMBER	
	AREA CODE	NUMBER
CASEY KEATING	303	578-2579

9. DESTINATION
a. NAME OF CONSIGNEE
MILWAUKEE WFO (SULLIVAN) WI

8. TO:

a. NAME

b. COMPANY

b. STREET ADDRESS
N3533 HARDSCRABBLE ROAD

c. STREET ADDRESS

c. CITY
DOUSMAN

d. CITY	e. STATE	f. ZIP CODE	d. STATE	e. ZIP CODE
			WI	53118

10. PLEASE FURNISH QUOTATIONS TO THE ISSUING OFFICE IN BLOCK 5a ON OR BEFORE CLOSE OF BUSINESS *(Date)*
11/20/2026 1430 MS

IMPORTANT: This is a request for information and quotations furnished are not offers. If you are unable to quote, please so indicate on this form and return it to the address in Block 5a. This request does not commit the Government to pay any costs incurred in the preparation of the submission of this quotation or to contract for supplies or service. Supplies are of domestic origin unless otherwise indicated by quoter. Any representations and/or certifications attached to this Request for Quotation must be completed by the quoter.

11. SCHEDULE *(Include applicable Federal, State and local taxes)*

ITEM NUMBER (a)	SUPPLIES/SERVICES (b)	QUANTITY (c)	UNIT (d)	UNIT PRICE (e)	AMOUNT (f)
	NOTICE: THE GOVERNMENT DOES NOT ACCEPT RESPONSIBILITY FOR NON-RECEIPT OF QUOTES. IT IS THE CONTRACTOR'S RESPONSIBILITY TO REQUEST A CONFIRMATION OF THE QUOTE RECEIPT. UNIQUE ENTITY ID _____ CAGE CODE _____ OFFEROR MAY SUBMIT THE QUOTE ON THIS SF-18 FORM OR THEIR OWN COMPANY FORM. QUOTES WILL BE EVALUATED BASED ON (RFO 52.212-2) IN ATTACHED CLAUSES & PROVISIONS. VENDORS WHO DO NOT PROVIDE Continued...				

12. DISCOUNT FOR PROMPT PAYMENT	a. 10 CALENDAR DAYS (%)	b. 20 CALENDAR DAYS (%)	c. 30 CALENDAR DAYS (%)	d. CALENDAR DAYS NUMBER	d. CALENDAR DAYS PERCENTAGE

NOTE: Additional provisions and representations ☐ are ☐ are not attached.

13. NAME AND ADDRESS OF QUOTER	14. SIGNATURE OF PERSON AUTHORIZED TO SIGN QUOTATION	15. DATE OF QUOTATION
a. NAME OF QUOTER		
b. STREET ADDRESS	16. SIGNER	
	a. NAME *(Type or print)*	b. TELEPHONE AREA CODE
c. COUNTY		
d. CITY / e. STATE / f. ZIP CODE	c. TITLE *(Type or print)*	NUMBER

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Previous edition not usable

STANDARD FORM 18 (REV. 6/1995)
Prescribed by GSA-FAR (48 CFR) 53.215-1(a)

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	ALL EVALUATION CRITERIA WILL NOT BE ACCEPTED. THE OFFEROR MUST BE CURRENTLY REGISTERED IN THE SYSTEM FOR AWARD MANAGEMENT (SAM) TO BE ELIGIBLE FOR AN AWARD. QUOTES RECEIVED FROM CONTRACTORS WHO ARE NOT ACTIVE IN SAM WILL NOT BE CONSIDERED. TOTAL SMALL BUSINESS SET-ASIDE, FIRM-FIXED PRICE PURCHASE ORDER TO BE AWARDED TO THE LOW PRICED, TECHNICALLY ACCEPTABLE QUOTE. WAGE DETERMINATION 2015-4899 REV 32 DATED 08/22/2026 IS APPLICABLE TO THIS RFQ.				
0001	BASE YEAR SERVICES, NON-PERSONAL, TO PROVIDE ALL LABOR, EQUIPMENT AND MATERIALS (UNLESS OTHWERWISE PROVIDED HEREIN) NECESSARY FOR SNOW REMOVAL SERVICES AT THE NWS OFFICE IN MILWAUKEE, WI IN ACCORDANCE WITH THE STATEMENT OF WORK. PERIOD OF PERFORMANCE: DATE OF AWARD - 11/30/2027 RATES FOR ESTIMATED SERVICES PER SEASON SNOW PLOWING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK CLEARING QTY 15 HOURLY RATE $_____ TOTAL $_____ PARKING LOT SALTING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK SALTING QTY 15 HOURLY RATE $_____ TOTAL $_____ Product/Service Code: S218				
1001	OPTION YEAR 1 SERVICES, NON-PERSONAL, TO PROVIDE ALL LABOR, EQUIPMENT AND MATERIALS (UNLESS OTHWERWISE PROVIDED HEREIN) NECESSARY FOR SNOW REMOVAL SERVICES AT THE NWS OFFICE, WILWAUKEE, WI IN ACCORDANCE WITH THE STATEMENT OF WORK. PERIOD OF PERFORMANCE: 12/01/2027 - 11/30/2028				

Continued...

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	RATES FOR ESTIMATED SERVICES PER SEASON SNOW PLOWING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK CLEARING QTY 15 HOURLY RATE $_____ TOTAL $_____ PARKING LOT SALTING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK SALTING QTY 15 HOURLY RATE $_____ TOTAL $_____ (Option Line Item) Product/Service Code: S218				
2001	OPTION YEAR 2 SERVICES, NON-PERSONAL, TO PROVIDE ALL LABOR, EQUIPMENT AND MATERIALS (UNLESS OTHWERWISE PROVIDED HEREIN) NECESSARY FOR SNOW REMOVAL SERVICES AT THE NWS OFFICE, WILWAUKEE, WI IN ACCORDANCE WITH THE STATEMENT OF WORK. PERIOD OF PERFORMANCE: 12/01/2028 - 11/30/2029 RATES FOR ESTIMATED SERVICES PER SEASON SNOW PLOWING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK CLEARING QTY 15 HOURLY RATE $_____ TOTAL $_____ PARKING LOT SALTING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK SALTING QTY 15 HOURLY RATE $_____ TOTAL $_____ (Option Line Item) Product/Service Code: S218				
3001	OPTION YEAR 3 SERVICES, NON-PERSONAL, TO PROVIDE ALL LABOR, EQUIPMENT AND MATERIALS (UNLESS OTHWERWISE PROVIDED HEREIN) NECESSARY FOR SNOW REMOVAL SERVICES AT THE NWS OFFICE, WILWAUKEE, WI IN ACCORDANCE WITH THE STATEMENT OF WORK. PERIOD OF PERFORMANCE: 12/01/2029 - 11/30/2030 RATES FOR ESTIMATED SERVICES PER SEASON				

Continued...

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	SNOW PLOWING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK CLEARING QTY 15 HOURLY RATE $_____ TOTAL $_____ PARKING LOT SALTING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK SALTING QTY 15 HOURLY RATE $_____ TOTAL $_____ (Option Line Item) Product/Service Code: S218				
4001	OPTION YEAR 4 SERVICES, NON-PERSONAL, TO PROVIDE ALL LABOR, EQUIPMENT AND MATERIALS (UNLESS OTHWERWISE PROVIDED HEREIN) NECESSARY FOR SNOW REMOVAL SERVICES AT THE NWS OFFICE, WILWAUKEE, WI IN ACCORDANCE WITH THE STATEMENT OF WORK. PERIOD OF PERFORMANCE: 12/01/2030 - 11/30/2031 RATES FOR ESTIMATED SERVICES PER SEASON SNOW PLOWING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK CLEARING QTY 15 HOURLY RATE $_____ TOTAL $_____ PARKING LOT SALTING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK SALTING QTY 15 HOURLY RATE $_____ TOTAL $_____ (Option Line Item) Product/Service Code: S218				

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Section 2 - Combined Synopsis/Solicitation

Statement of Work SOW

National Weather Service (NWS) Statement of Work (SOW)
Milwaukee Weather Forecast Office
Snow Removal

Scope:

The contractor shall provide all personnel, materials, tools and supervision for satisfactorily managing and performing programs for snow removal as specified herein. All equipment, materials, and supplies shall be furnished by the contractor, unless otherwise specified, and properly stored in the area designated by the Meteorologist-In-Charge (MIC) or designated representative.

Location:

National Weather Service N3533 Hardscrabble Road
Dousman, WI 53118-9409
Waukesha County, WI

Service Contract Labor Standards act applies and is the contractor's responsibility to be in compliance with this requirement.

Period of Performance:

Estimate season for snow removal is from October through May of each year for a total of 8 months. Due to the unpredictability of snowfall in the area this contract will go from December to November so there is no lapse in service if snow fall happens earlier or later in the year.

Base Year: 12/01/2026 – 11/30/2027
Option Year 1: 12/01/2027 – 11/30/2028
Option Year 2: 12/01/2028 – 11/30/2029
Option Year 3: 12/01/2029 – 11/30/2030
Option Year 4: 12/01/2030 – 11/30/2031

Description of Work:

The contractor shall perform snow removal when two (2) or more inches of snow falls, or upon request by the MIC. Contractor shall not allow snow to accumulate over four (4) inches. When requested, the snow removal shall be performed within two hours of the request. Snow removal shall include:

1. The parking lot of the main facility, including entrance drive and all paved surfaces, excluding the locations where vehicles are parked at the time when work is performed. If the contractor is requested to come and plow, we shall request parked vehicles be moved to plowed areas to allow thorough snow removal.
2. The sidewalks to all entry ways of the building. Also, the sidewalk to the instrument equipment and to

the storage/generator building.
3. Once snow has been removed from designated sidewalks and around all exterior doors, the Contractor shall apply an application of ice melting granules that will not kill grass and/or shrubs or damage concrete and asphalt surfaces.
4. The snow shall be plowed to allow trash removal vehicles access to the trash dumpster.

Responsibility for Loss, Damage, Death, or Injury:

Except as otherwise provided by law, the Government will not be responsible for the loss of or damage to the contractor's equipment, or death of or injury to the contractor's personnel, or for the death of, or injury to persons or for damages to property resulting from contractor's negligent performance under this contract. The contractor shall be responsible for all damages to persons or properties that occur as a result of his fault or negligence, or the fault or negligence of his employees or agents, while performing the requirements of this contract.

Inspections and Acceptance:

If any of the services do not conform to the contract requirements, the Government may require the contractor to perform the services again in conformity with the contract requirements, at no increase in contract amount. If the defects in services are not corrected by performance, the Government may (1) require the contractor to take necessary action to ensure that future performance conforms to contract requirements and (2) reduce the contract price to reflect the reduced value of the services performed.

Government Point of Contacts (POC):

TBD

Invoicing:

Vendor shall submit invoices in IPP.gov in arrears during the month’s services are provided.

Deliverable	Due Date/First Instance Due	Recurring

Section 3 - Line Items and Attachments

List of Line Items

Item Number	Description	Quantity	Unit	Unit Price	Amount
0001	BASE YEAR SERVICES, NON-PERSONAL, TO PROVIDE ALL LABOR, EQUIPMENT AND MATERIALS (UNLESS OTHWERWISE PROVIDED HEREIN) NECESSARY FOR SNOW REMOVAL SERVICES AT THE NWS OFFICE IN MILWAUKEE, WI IN ACCORDANCE WITH THE STATEMENT OF WORK. PERIOD OF PERFORMANCE: DATE OF AWARD - 11/30/2027 RATES FOR ESTIMATED SERVICES PER SEASON SNOW PLOWING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK CLEARING QTY 15 HOURLY RATE $_____ TOTAL $_____ PARKING LOT SALTING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK SALTING QTY 15 HOURLY RATE $_____ TOTAL $_____ Product/Service Code: S218				
1001	OPTION YEAR 1 SERVICES, NON-PERSONAL, TO PROVIDE ALL LABOR, EQUIPMENT AND MATERIALS (UNLESS OTHWERWISE PROVIDED HEREIN) NECESSARY FOR SNOW REMOVAL SERVICES AT THE NWS OFFICE, WILWAUKEE, WI IN ACCORDANCE WITH THE STATEMENT OF WORK. PERIOD OF PERFORMANCE: 12/01/2027 - 11/30/2028 RATES FOR ESTIMATED SERVICES PER SEASON SNOW PLOWING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK CLEARING QTY 15 HOURLY RATE $_____ TOTAL $_____ PARKING LOT SALTING QTY 25 HOURLY RATE $_____ TOTAL $_____				

Item Number	Description	Quantity	Unit	Unit Price	Amount
	SIDEWALK SALTING QTY 15 HOURLY RATE $_____ TOTAL $_____				
	(Option Line Item)				
	Product/Service Code: S218				
2001	OPTION YEAR 2 SERVICES, NON-PERSONAL, TO PROVIDE ALL LABOR, EQUIPMENT AND MATERIALS (UNLESS OTHWERWISE PROVIDED HEREIN) NECESSARY FOR SNOW REMOVAL SERVICES AT THE NWS OFFICE, WILWAUKEE, WI IN ACCORDANCE WITH THE STATEMENT OF WORK.				
	PERIOD OF PERFORMANCE: 12/01/2028 - 11/30/2029				
	RATES FOR ESTIMATED SERVICES PER SEASON				
	SNOW PLOWING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK CLEARING QTY 15 HOURLY RATE $_____ TOTAL $_____ PARKING LOT SALTING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK SALTING QTY 15 HOURLY RATE $_____ TOTAL $_____				
	(Option Line Item)				
	Product/Service Code: S218				
3001	OPTION YEAR 3 SERVICES, NON-PERSONAL, TO PROVIDE ALL LABOR, EQUIPMENT AND MATERIALS (UNLESS OTHWERWISE PROVIDED HEREIN) NECESSARY FOR SNOW REMOVAL SERVICES AT THE NWS OFFICE, WILWAUKEE, WI IN ACCORDANCE WITH THE STATEMENT OF WORK.				
	PERIOD OF PERFORMANCE: 12/01/2029 - 11/30/2030				
	RATES FOR ESTIMATED SERVICES PER SEASON				
	SNOW PLOWING QTY 25 HOURLY RATE $_____ TOTAL $_____				

Item Number	Description	Quantity	Unit	Unit Price	Amount
	SIDEWALK CLEARING QTY 15 HOURLY RATE $_____ TOTAL $_____ PARKING LOT SALTING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK SALTING QTY 15 HOURLY RATE $_____ TOTAL $_____ (Option Line Item) Product/Service Code: S218				
4001	OPTION YEAR 4 SERVICES, NON-PERSONAL, TO PROVIDE ALL LABOR, EQUIPMENT AND MATERIALS (UNLESS OTHWERWISE PROVIDED HEREIN) NECESSARY FOR SNOW REMOVAL SERVICES AT THE NWS OFFICE, WILWAUKEE, WI IN ACCORDANCE WITH THE STATEMENT OF WORK. PERIOD OF PERFORMANCE: 12/01/2030 - 11/30/2031 RATES FOR ESTIMATED SERVICES PER SEASON SNOW PLOWING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK CLEARING QTY 15 HOURLY RATE $_____ TOTAL $_____ PARKING LOT SALTING QTY 25 HOURLY RATE $_____ TOTAL $_____ SIDEWALK SALTING QTY 15 HOURLY RATE $_____ TOTAL $_____ (Option Line Item) Product/Service Code: S218				

List of Attachments

Attachment Number	Title
1	Wage Determination 2015-4899 Rev 32

Section 4 - Contract Terms and Conditions

FAR 52.222-3 Convict Labor. (JUN 2003)

FAR 52.222-41 Service Contract Labor Standards. (AUG 2018)

FAR 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts). (AUG 2018)

FAR 52.222-62 Paid Sick Leave Under Executive Order 13706. (JAN 2022)

CAR 1352.201-70 Contracting Officer's Authority. (MAR 2010)

CAR 1352.209-74 Organizational conflict of interest. (APR 2010)

RFO 52.203-17 Contractor Employee Whistleblower Rights. (NOV 2023)

RFO 52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements. (JAN 2017)

RFO 52.204-9 Personal Identity Verification of Contractor Personnel. (JAN 2011)

RFO 52.204-13 System for Award Management-Maintenance. (OCT 2018) (Deviation JAN 2026)

RFO 52.209-6 Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (Deviation JAN 2026)

RFO 52.209-10 Prohibition on Contracting With Inverted Domestic Corporations. (NOV 2015) (Deviation JAN 2026)

RFO 52.212-4 Terms and Conditions-Commercial Products and Commercial Services. (NOV 2023) (Deviation JAN 2026)

RFO 52.219-6 Notice of Total Small Business Set-Aside. (NOV 2020) (Deviation JAN 2026)

RFO 52.222-19 Child Labor-Cooperation with Authorities and Remedies. (JAN 2025) (Deviation JAN 2026)

RFO 52.222-36 Equal Opportunity for Workers with Disabilities. (JUN 2020) (Deviation JAN 2026)

RFO 52.222-50 Combating Trafficking in Persons. (OCT 2025) (Deviation JAN 2026)

RFO 52.223-1 Biobased Product Certification. (MAY 2024) (Deviation JAN 2026)

RFO 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts. (MAY 2024) (Deviation JAN 2026)

RFO 52.223-3 Hazardous Material Identification and Safety Data. (FEB 2021) (Deviation JAN 2026)

RFO 52.223-5 Pollution Prevention and Right-to-Know Information. (MAY 2024)

RFO 52.223-23 Sustainable Products. (MAY 2024) (Deviation JAN 2026)

RFO 52.226-8 Encouraging Contractor Policies To Ban Text Messaging While Driving. (MAY 2024)

RFO 52.232-18 Availability of Funds. (APR 1984)

RFO 52.232-33 Payment by Electronic Funds Transfer - System for Award Management. (OCT 2018)

RFO 52.232-40 Providing Accelerated Payments to Small Business Subcontractors. (MAR 2023)

RFO 52.233-3 Protest after Award. (AUG 1996) (Deviation JAN 2026)

RFO 52.233-4 Applicable Law for Breach of Contract Claim. (OCT 2004) (Deviation JAN 2026)

RFO 52.237-2 Protection of Government Buildings, Equipment, and Vegetation. (APR 1984)

RFO 52.240-91 Security Prohibitions and Exclusions. (Deviation JAN 2026)

RFO 52.244-6 Subcontracts for Commercial Products and Commercial Services. (OCT 2025) (DEVIATION April 2026)

Local Clause Deobligation of Remaining Residual Balances

The Department of Commerce may closeout a contract utilizing RFO 4.308 procedures following the agency's determination that the contract has been physically completed and that final payment has been made to the contract. Physical completion occurs when all option provisions have expired, and the contractor has completed all required deliveries and/or services, which the Government has inspected and accepted. As part of the administrative closeout procedures, the Government intends to unilaterally deobilgate any unliquidated obligations (ULO) 90 days after each period of performance. Prior to doing so, the Contracting Officer (CO) (or Administrative Contracting Officer (ACO) will notify the contractor of the intended amount of deobligation and ask the contractor to confirm within fourteen (14) days after notification that all invoices for the completed period of performance have been submitted and processed for payment. Upon confirmation that all invoices have been submitted and processed for payment, or upon the contractor's failure to respond to the CO/ACOs notification of intent to deobligate, the CO or ACO will unilaterally deobligate the potential ULOs by reducing the funded amount to an amount equal to the contractors invoiced/paid amount for that contract/order period of performance.

Standard Language UTILIZATION OF FEDCONNECT FOR CONTRACT ADMINISTRATION

The Department of Commerce will utilize the FedConnect® web portal in administering this award. The contractor must be registered in FedConnect® and have access to the FedConnect® website located at https://www.fedconnect.net/Fedconnect/. For assistance in registering or for other FedConnect® questions please call the FedConnect® Help Desk at (800) 899-6665 or email at support@fedconnect.net. There is no charge for registration in or use of FedConnect®.

NOAA Acquisition Manual 1330-52.222-70 NOAA SEXUAL ASSAULT AND SEXUAL HARASSMENT PREVENTION AND RESPONSE POLICY (MAY 2018)

In accordance with NOAA Administrative Order (NAO) 202-1106, NOAA Sexual Assault and Sexual Harassment Prevention and Response Policy, it is the policy of NOAA to maintain a work environment free from sexual assault and sexual harassment. NOAA prohibits sexual assault and sexual harassment by or of any employee, supervisor, manager, contractor, vendor, affiliate, or other individual with whom NOAA employees come into contact by the virtue of their work for NOAA.

(a) Definitions.

Contractor Employees - The term “contractor employees,” as used in this solicitation and contract language, refers to employees of the prime contractor or its subcontractors, affiliates, consultants, or team members.

Sexual Assault - The term sexual assault, as used in this solicitation and contract language, means any conduct proscribed by state or federal sexual abuse laws, including, but not limited to, those defined in chapter 109A of title 18 of the U.S. Code (sexual abuse), and assaults committed both by offenders who are strangers to the victim and by offenders who are known or related by blood or marriage to the victim.

Sexual Harassment - As defined by the Equal Employment Opportunity Commission, sexual harassment is a form of sex discrimination that violates Title VII of the Civil Rights Act of 1964. It includes unwelcome sexual advances, requests for sexual favors, and other verbal, non-verbal, or physical conduct of a sexual nature when any of the following are true:

● Submission to such conduct is made either explicitly or implicitly as a term or condition of an individual's employment;

● Submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual;

● The conduct unreasonably interferes with an individual's work performance or creates an intimidating, hostile, or offensive working environment.

The main characteristics of sexual harassment are that the harasser's conduct is targeted against the recipient’s sex, gender identity, or sexual orientation, and is unwelcome to the recipient. It may include, but is not limited to: offensive jokes, slurs, epithets or name calling, undue attention, physical assaults or threats, unwelcome touching or contact, intimidation, ridicule or mockery, insults or put-downs, constant or unwelcome questions about an individual's identity, and offensive objects or pictures.

(b) Requirements.

1. It is the responsibility of the contractor to ensure that contractor employees maintain the highest degree of conduct and standards in performance of the contract. In support of this, NOAA urges its contractors to develop and enforce comprehensive company policy addressing sexual assault and sexual harassment.

2. The contractor shall include wording substantially the same as this solicitation and contract language in every subcontract so that it is binding upon each subcontractor.

3. If a contractor employee observes or is the object of sexual assault or sexual harassment, he or she is highly encouraged to report the matter, as soon as possible, to their immediate supervisor, the COR, subset of the COR (e.g. Task Manager or Assistant COR), or contracting officer (CO) if a COR is not assigned to the contract. The contract employee may also contact the NOAA Civil Rights Office to obtain guidance on reporting instances of sexual assault or sexual harassment. If deemed necessary, the contractor employee may also report such instances to local law enforcement. In the case where the incident occurs while performing at a remote location, such as at sea or in the field (at a field camp or other isolated location) where the above referenced individuals are unavailable, the contractor employee should follow the reporting procedure set forth in NAO 202-1106, Section 6.07, Reporting from Remote Locations.

4. Swift reporting allows NOAA and the contractor to take the appropriate measures to ensure that offensive behavior stops and the complainants' needs are addressed.

5. The COR (if assigned), CO, and contractor, where applicable, will work together to ensure appropriate action is taken in accordance with applicable laws and regulations, contract terms and conditions, and the contractor's written policy (where applicable).

6. The contractor shall provide all contractor employees assigned to perform under this contract with mandatory sexual assault and sexual harassment prevention and response training in compliance with the requirements of NAO 202-1106, Section 5, Prevention Training and Awareness, as part of their initial in-processing and on an annual basis thereafter. The initial training shall be completed within [ ] business days (30 unless a different number is inserted) of contract award or the date a contractor employee is assigned to perform under the contract, as applicable.

Evidence of initial training by name and date completed for each contractor employee, shall be submitted to the COR or contracting officer (if no COR assigned) within 10 business days of completion.

Evidence of annual training by name and date completed for each contractor employee shall be submitted to the COR or contracting officer (if no COR assigned) no later than March 1st of each calendar year of contract performance.

7. The mandatory sexual assault and sexual harassment training provided by the contractor shall include the required elements set forth by NOAA's Workplace Violence Program Manager. A link to the website including the required elements of the training is provided at https://www.noaa.gov/organization/acquisition-grants/noaa-workplace-harassment-training-for-contractors-and-financial. The website will also provide training materials and resources to assist the contractor in conducting the training. The contractor may provide training that solely addresses the NOAA required elements or may supplement existing company sexual assault and sexual harassment training in a manner that ensures all of the elements are adequately addressed.

8. The required elements of the training and resources available to the contractor for the training may be updated by NOAA periodically. The contractor is responsible for monitoring the website and incorporating any changes to the NOAA required elements into the contractor provided training.

9. NOAA's Workplace Violence Program Manager, COR, or CO may periodically review the contractor's training outline to ensure all required elements are included and, if necessary, any appropriate adjustments are made to the training by the contractor.

10. Contractor employees performing on assignments in a remote location, such as at a field camp or other isolated locations, are subject to receiving the same briefing on the parameters of the order provided to NOAA employees as set forth in Section 6 of NAO 202-1106.

11. The contractor shall provide a copy of this solicitation and contract language and NAO 202-1106 to contractor employees.

(c) Sexual Assault/Sexual Harassment (SASH) Helpline.

For NOAA employees, affiliates, and contractors who have experienced sexual assault or sexual harassment, NOAA has established the NOAA Sexual Assault/Sexual Harassment (SASH) helpline. This helpline is designed to provide crisis intervention, referrals, and emotional support to those who are victims and/or survivors of sexual harassment or sexual assault within the workplace. Contractor employees may use the helpline to receive live, confidential, one-on-one support in an occurrence of sexual harassment or assault by a Federal Government employee.

All services are anonymous, secure, and available worldwide, 24 hours a day, seven days a week. The NOAA SASH helpline is accessible through a variety of channels, including:

● Phone: 1-866-288-6558

● Website & Online Chat: https://www.noaasashhelpline.org/

● Mobile App: NOAA SASH Helpline (available via iOS and Android App Stores)

● Text: (202) 335-0265

(d) Confidentiality.

Any party receiving information from the filing of a complaint alleging sexual assault or sexual harassment, or while performing an investigation into such a complaint, shall keep the information confidential. “Confidentiality” means that the information shall only be shared with others who have a need to know the information to conduct their official duties.

(e) Remedies.

In addition to other remedies available to the Government, contractor employee violations of Federal requirements (e.g., law, statutes, executive orders, code, rules, regulations) applicable to sexual assault and sexual harassment and/or failure to complete the mandatory training set forth in this solicitation and contract language, may result in:

1. Requiring the contractor to remove a contractor employee or employees from the performance of the contract;

2. Requiring the contractor to terminate a subcontract;

3. Suspension of contract payments until the Contractor has taken appropriate remedial action;

4. Termination of the contract for default or cause, in accordance with the termination clause of this contract;

5. Suspension or debarment; or

6. Other appropriate action.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.232-71 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (FEB 2023)

The Contractor must submit payment requests electronically through the U.S. Department of the Treasury's Invoice Processing Platform System (IPP). The Contractor must use the IPP website to register, access, and submit payment requests. The IPP website address is https://www.ipp.gov.

"Payment request" means any request for contract financing payment or invoice payment to the Contractor. To be considered proper, invoices must be prepared in accordance with, and contain all elements specified in, the contract payment clause (e.g., FAR 52.212-4(g), FAR 52.232-25(a)(3), FAR 52.232-26(a)(2), FAR 52.232-27(a)(2)).

The Contractor must include the following documents as attachments to payment requests submitted through the IPP: [Contracting Officer list required invoice attachment(s); none if left blank].

If the Contractor is unable to comply with the requirement to submit payment requests through the IPP due to a threat to national security; a matter of unusual or compelling urgency; or because the political, financial, or communications infrastructure of a foreign country does not support access to the IPP, the Contractor must request an exception in writing. Contact the Contracting Officer for more information about requesting an exception.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-70 CONTRACTOR COMMUNICATIONS

(a) A contractor employee shall be identified both by the individual’s name and the contractor’s name when:

● Included in NOAA’s locator, and

● When submitting any type of electronic correspondence to any NOAA employee or stakeholder.

(b) Any written correspondence from a contractor or any contractor employee shall be printed on company/organization letterhead or otherwise clearly identify the sender as an employee of the company or organization and shall identify the contract number.

(c) Contractors and/or contractor employees shall clearly identify themselves as such in any verbal communications, whether in informal discussion or a formal meeting.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-71 NOAA GOVERNMENT-CONTRACTOR RELATIONS - NON-PERSONAL SERVICES CONTRACT (SEPT 2017)

(a) The Government and the contractor understand and agree that the services to be delivered under this contract by the contractor to the Government are non-personal services as defined in FAR Part 37, Service Contracting, and the parties recognize and agree that no employer-employee relationship exists or will exist under the contract between the Government and the contractor's personnel. It is, therefore, in the best interest of the Government to afford both parties an understanding of their respective obligations.

(b) Contractor personnel under this contract shall not:

1. Be placed in a position where they are under relatively continuous supervision and control of a Government employee.

2. Be placed in a position of command, supervision, administration, or control over Government personnel or over personnel of other contractors performing under other NOAA contracts.

(c) The services to be performed under this contract do not require the contractor or the contractor's personnel to exercise personal judgment and discretion on behalf of the Government. Rather, the contractor's personnel will act and exercise personal judgment and discretion on behalf of the contractor.

(d) Rules, regulations, directives, and requirements that are issued by the Department of Commerce and NOAA under its responsibility for good order, administration, and security are applicable to all personnel who enter the Government installation and facilities, who are provided access to Government systems, or who travel on Government transportation. This is not to be construed or interpreted to establish any degree of Government control that is inconsistent with a non-personal services contract.

(e) Both parties are responsible for monitoring contract activities for indications of improper employee-employer relationships during performance. In the event a situation or occurrence takes place inconsistent with this contract language, the following applies:

1. The contractor shall notify the contracting officer in writing within 5 business days from the date of any situation or occurrence where the contractor considers specific contract activity to be inconsistent with the intent of this contract language. The notice must include the date, nature and circumstance of the situation or occurrence, the name, function and activity of each Government employee or contractor employee involved or knowledgeable about the situation or occurrence, provide any documents or the substance of any oral communications related to the activity, and an estimated date by which the Government is recommended to respond to the notice in order to minimize cost, delay, or disruption of performance.

2. The contracting officer will review the information provided by the contractor, obtain additional information (if needed), and respond in writing as soon as practicable after receipt of the notification from the contractor. The contracting officer's response will provide a decision on whether the contracting officer determines the situation or occurrence to be inconsistent with the intent of this contract language and, if deemed necessary, will specify any corrective action(s) to be taken in order to resolve the issue.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-72 CONTRACTOR ACCESS TO NOAA FACILITIES (SEPT 2017)

(a)

1. The performance of this contract requires employees of the prime contractor or its subcontractors, affiliates, consultants, or team members (“contractor employees”) to have access to and to the extent authorized, mobility within, a NOAA facility.

2. NOAA may close and or otherwise deny contractor employees access to a NOAA facility for a portion of a business day or longer for various reasons including, but not limited, to the following events:

i. Federal public holidays for Federal employees in accordance with 5 U.S.C. 6103;

ii. Fires, floods, earthquakes, and unusually severe weather, including but not limited to snow storms, tornadoes, and hurricanes;

iii. Occupational safety or health hazards;

iv. Lapse in Appropriations; or

v. Federal Statute, Executive Order, Presidential Proclamation, or any other unforeseen reason.

3. In such events, the contractor employees may be denied access to a NOAA facility that is ordinarily available for the contractor to perform work or make delivery, as required by the contract.

(b) In all instances where contractors are denied access or required to vacate a NOAA facility, in part or in whole, the contractor shall be responsible to ensure contractor personnel working under the contract comply. If the circumstances permit, the contracting officer will provide direction to the contractor, either directly or through the COR, which could include continuing on-site performance during the NOAA facility closure period; however, if Government oversight is required and is not available, on-site performance shall not be allowed. In the absence of such direction, the contractor shall exercise sound judgment to minimize unnecessary contract costs and performance impacts, for example, performing required work off- site if possible or reassigning personnel to other activities if appropriate.

(c) The contractor shall be responsible for monitoring the Office of Personnel Management at opm.gov, the local radio, television stations, NOAA web sites, and other communication channels. Once the facility is accessible, the contractor shall resume contract performance as required by the contract.

(d) For the period that NOAA facilities were not accessible to contractors who required access in order to perform the services, the contracting officer may—

1. Adjust the contract performance or delivery schedule for a period equivalent to the period the NOAA facility was not accessible;

2. Forego the work; or

3. Reschedule the work by mutual agreement of the parties.

(e) Notification procedures of a NOAA facility closure, including contractor denial of access, are as follows:

1. The contractor shall be responsible for notification of its employees of the NOAA facility closure to include denial of access to the NOAA facility. The dismissal of NOAA employees in accordance with statute and regulations providing for such dismissals shall not, in itself, equate to a NOAA facility closure in which contractors are denied access. Moreover, the leave status of NOAA employees shall not be conveyed or imputed to contractor personnel. Accordingly, unless a NOAA facility is closed and the contractor is denied access to the facility, the contractor shall continue performance in accordance with the contract.

2. Access to Government facilities and resources, including equipment and systems, will be limited and personnel necessary to administer contract performance may not be available. Generally, supply and service contracts that are funded beyond the date of the lapse in appropriation and do not require access to Government facilities, active administration by Government personnel or the use of Government resources in a manner that would cause the Government to incur additional obligations during the lapse in appropriation may continue. If a delivery date for a contract falls during the period of a lapse in appropriations, Government personnel may not be available to receive delivery. Contractors are directed to consult with a contracting officer before attempting to make a delivery. Contracting officers will be available throughout the lapse in appropriation period to provide guidance.

Once OMB guidance is given, CORs, in consultation with the contracting officer, will notify those contractors that are deemed by the Program Office to be performing excepted work and identify the contractor personnel requiring access to NOAA facilities. CORs will also coordinate directly with facility management or physical security personnel at respective locations to ensure that the names of contractor personnel requiring access to Government facilities during the lapse in appropriations are provided to physical security personnel.

Contractors who are not designated as performing excepted work are not allowed access to Government facilities or to utilize Government resources in a manner that would incur any additional obligation of funding on behalf of the Government during the lapse in appropriation.

3. Unless otherwise specified within the contract award, contractors requiring access to NOAA facilities outside normal business hours or outside the normal workweek shall submit a written request in writing through the COR to the contracting officer. The written request shall provide justification supporting the required access and be submitted [ ] hours/days (contracting officer insert number of days. If blank, 72 hours applies) before access to the NOAA facility is needed.

(End of solicitation and contract language)

RFO 52.217-8 Option To Extend Services. (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 15 days.

(End of clause)

Inclusion of FAR clause 52.217-8, Option to Extend Services, in the solicitation and resultant contract is

for use by the Government as outlined at FAR 37.111, Extension of Services. The option will be exercised as needed at any time during the life of the contract using the rates applicable at the time of exercise.

RFO 52.217-9 Option To Extend the Term of the Contract. (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 1 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 15 days before the contract expires. The preliminary notice does not commit the Government to an extension. If the Government fails to extend the term of the contract within the period identified and the Government has provided a written notice to the Contractor that the action is undergoing review in accordance with Department of Commerce procedures for implementing Executive Order 14222 the contractor shall stop all work and incur no costs to be charged to the Government. Once the Department of Commerce's review process has occurred, the Government will notify the contractor if the option may be exercised or not. The Government will then extend the term of the contract with a bilateral modification.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years.

(End of clause)

RFO 52.222-42 Statement of Equivalent Rates for Federal Hires. (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It Is Not A Wage Determination

Employee class Monetary wage - Fringe benefits

This Statement is for Information Only: It Is Not A Wage Determination

Employee class Monetary wage - Fringe benefits

Snowmaker/Equipment Operator NA-08 $23.89 +30%

(End of clause)

RFO 52.222-90 Addressing DEI Discrimination by Federal Contractors (APR 2026) (DEVIATION April 2026)

(a) *Definitions*. As used in this clause-

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (*e.g*., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

(1) The Contractor will not engage in any racially discriminatory DEI activities;

(2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;

(3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;

(4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and

(5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.

(6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of clause)

RFO 52.252-2 Clauses Incorporated by Reference. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): https://www.acquisition.gov/far/index.html

(End of clause)

RFO 52.252-6 Authorized Deviations in Clauses. (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the clause.

(b) The use in this solicitation or contract of any Commerce Acquisition Regulation (48 CFR 1352) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of clause)

Section 5 - Other Contract Terms and Conditions

CAR 1352.233-71 GAO and Court of Federal Claims protests. (APR 2010)

RFO 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. (JAN 2017)

RFO 52.204-7 System for Award Management-Registration. (NOV 2024) (Deviation JAN 2026)

RFO 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (FEB 2016) (Deviation JAN 2026)

RFO 52.240-90 Security Prohibitions and Exclusions Representations and Certifications. (Deviation JAN 2026)

CAR 1352.215-72 Inquiries. (APR 2010)

Offerors must submit all questions concerning this solicitation in writing to Casey.Keating@noaa.gov. Questions should be received no later than 5 calendar days after the issuance date of this solicitation. Any responses to questions will be made in writing, without identification of the questioner, and will be included in an amendment to the solicitation. Even if provided in other form, only the question responses included in the amendment to the solicitation will govern performance of the contract.

(End of clause)

CAR 1352.233-70 Agency protests. (APR 2010)

(a) An agency protest may be filed with either: (1) The contracting officer, or (2) at a level above the contracting officer, with the appropriate agency Protest Decision Authority. See 64 FR 16,651 (April 6, 1999).

(b) Agency protests filed with the Contracting Officer shall be sent to the following address:
Casey Keating
Contracting Officer
Western Acquisitions Division
325 Broadway, SOU6
Boulder, CO 80305-3328

(c) Agency protests filed with the agency Protest Decision Authority shall be sent to the following address: Noah Nielsen
Branch Chief, NWS Contracts
Western Acquisitions Division
U.S. Department of Commerce/NOAA
NOAA Building 1
7600 Sand Point Way NE
Seattle, WA 98115-6349

(d) A complete copy of all agency protests, including all attachments, shall be served upon the Contract Law Division of the Office of the General Counsel within one day of filing a protest with either the Contracting Officer or the Protest Decision Authority.

(e) Service upon the Contract Law Division shall be made as follows: U.S. Department of Commerce, Office of the General Counsel, Chief, Contract Law Division, Room 5893, Herbert C. Hoover Building, 14th Street and Constitution Avenue, NW., Washington, DC 20230. FAX: (202) 482-5858.

(End of clause)

RFO 52.217-5 Evaluation of Options. (JUL 1990) (Deviation JAN 2026)

Except when it is determined in accordance with FAR 17.202(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)

This includes options under FAR clause 52.217-8, Option to Extend Services, which applies to this solicitation. Evaluation of options will not obligate the Government to exercise the option(s).

RFO 52.237-1 Site Visit. (APR 1984)

Offerors or quoters are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award.

(End of provision)

A site visit is highly recommended but not required. Vendors are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award. Please contact Tami Fettig (262) 431-5026, tami.fettig@noaa.gov to set up a time to visit the site. All questions during the site visit should be submitted electronically to Casey.Keating@noaa.gov

RFO 52.252-1 Solicitation Provisions Incorporated by Reference. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those

provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): https://www.acquisition.gov/far/index.html

(End of provision)

RFO 52.252-5 Authorized Deviations in Provisions. (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR chapter 1) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the provision.

(b) The use in this solicitation of any Commerce Acquisition Regulation (48 CFR chapter 1352) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of provision)

Section 6 - Instructions to Offerors

Addendum to RFO 52.212-1 Instructions to Quoters-Commercial Products and Commercial Services (Sep 2023) (Deviation Jan 2026)

NOTICE TO QUOTERS: Instructions for submitting quotations under this request for quote must be followed. Failure to provide all information to aid in the evaluation may be considered non-responsive. Quotes that are non-responsive may be excluded from further evaluation and rejected without further notification to the quoter.

1. Email quotes are required and can be sent to casey.keating@noaa.gov. Submit PDF or Microsoft Word format quotations to the office specified in this solicitation at or before the time specified in the solicitation.

2. Quoters shall have an active registration in the System for Award Management (https://sam.gov/content/home) in order to provide a quote and be eligible for award.

3. Quotes shall include:
* Signed copies of the SF 18 and SF 30(s) to acknowledge the solicitation and any applicable amendments
* Quoter's UEID/CAGE CODE
* Separately priced line items for the Base through Option Year 4
* Responses to each item listed below. Quoters should assume that the Government has no prior knowledge of them or their experience and capability.

1. Technical Acceptability/Capability. No more then 2/3 pages.
Provide details describing the Quoter’s overall technical approach to convey the Quoter’s understanding of, approach to, and ability to successfully perform the requirements as described in the Statement of Work. A detailed technical approach
write-up describing how the Quoter will perform this service is required to be submitted regardless of whether a site visit was made or not. The technical approach write-up must not be a reiteration of the Statement of Work, but how Quoter’s company plans on performing the tasks listed in the attached Statement of Work (i.e., performance checklists, anticipated number of employees, anticipated hours at the facility and/or confirmation of supplies being provided, etc.).

2. Past Experience. No more then 2/3 pages.
Provide details describing the Quoter’s background and past performance on contracts performing the same or similar requirements within a 2 year period as described in the Statement of Work. Include a brief description of the contract requirements, length of time to complete, cost management, communications between contracting parties, project management, and customer satisfaction.

3. Price.
Quotes should include best and final pricing for all labor and materials to complete the Statement of Work, including all rates for services listed on the SF18.

RFO 52.212-1 Instructions to Offerors-Commercial Products and Commercial Services. (SEP 2023) (Deviation JAN 2026)

(a) *Submission of offers*. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include-

(1) The solicitation number;

(2) The name, address, telephone number of the Offeror;

(3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;

(4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;

(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers*. The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers*.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) *Debriefings*. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

Section 7 - Evaluation

RFO 52.212-2 Evaluation-Commercial Products and Commercial Services. (NOV 2021) (Deviation JAN 2026)

Quotes will be evaluated based on the factors set forth in paragraph (a) using Lowest Price, Technically Acceptable (LPTA) procedures. Each evaluation criteria will be assessed as does not meet, meets, exceeds and not applicable if not provided. See instructions for what is required each quote to include, if any of the instruction requirements are not met than the quote may not be accepted or evaluated.

a) The Government will award a contract resulting from this solicitation to the responsible Quoter whose quote, conforming to the solicitation, is determined to be technically acceptable and offers the lowest evaluated price. Award will be made without tradeoffs. Evaluation will be based on the following pass/fail criteria:

1. Technical Approach. The Quoter's overall technical approach will be evaluated to assess the Government's level of confidence in the Offeror’s understanding of, approach to, and ability to successfully perform the requirements as described in the Statement of Work.
2. Experience. The Quoter's background, experience, and qualifications (relevant past projects performing similar services, certifications related to current requirement, etc.) will be assessed to determine the likelihood that the Offeror can successfully perform the contract requirements.
3. Price. The Government intends to award a LPTA, single firm-fixed-price contract. Evaluation will start with the lowest priced quote and move upwards until a quote receives a "pass" rating for both factors 1 and 2.

(b) Options. The Government will evaluate quotes for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that a quote is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) Notice of Award. A written notice of award or acceptance of an quote, mailed or otherwise furnished to the successful quoter within the time for acceptance specified in the quote, shall result in a binding contract without further action by either party. Before the quote’s specified expiration time, the Government may accept an quote (or part of an quote), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)